

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

June 18, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Barrett v. Anduril Industries, Inc. 2024-01374656	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$775,000 class action and PAGA settlement. The court has the following questions and comments: 1. In the February 19, 2026 order (ROA 89), the court stated that plaintiff had filed an overlong brief without obtaining leave of court. Plaintiff states that California Rules of Court

		3.769 and 3.764 authorize a 20-page brief in support of a preliminary approval motion. Rule 3.769 does not address page limits and Rule 3.764 does not address motions for preliminary approval of class action settlements. 2. The Supplemental Perlman Declaration (ROA 102) is not signed. <u>As to the settlement:</u> 3. In the February 19, 2026 order (ROA 89), the court stated that plaintiff should state his total compensation anticipated to be received (including for any individual claims and excluding any enhancement award). Does plaintiff anticipate receiving any compensation for any individual claims? 4. The word "and" in paragraph 1.4 of the amendment should be replaced with "to." 5. The parties amended the settlement agreement to calculate PAGA payments based on pay periods, but paragraph 6.3 of the amendment still states that PAGA payments are calculated based on "workweeks." 6. Paragraph 8.4 of the amendment appears to be missing a word before subsection "(c)," and there is a stray " ." at the end of that sentence. 7. In the February 19, 2026 order, the court stated that plaintiff seeks an enhancement award of \$7,500, and that the settlement agreement states that the enhancement award is in part in exchange for plaintiff "providing a full general release." Settlement Agreement ¶ 1.31; see also Settlement Agreement ¶ 6.4. The court stated that an enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action, and, in some circumstances, to recognize their willingness to act as a private attorney general, and that the court is unlikely to approve a settlement that provides an enhancement award in exchange for a general release. In the amendment to the settlement agreement, the parties have removed the references to plaintiff's enhancement award being in part in exchange for plaintiff "providing a full general release." Amendment ¶¶ 1.31, 6.4. Plaintiff still seeks an enhancement award of \$7,500. What compensation will plaintiff receive for the "full general release"? 8. In the February 19, 2026 order, the court stated that the "Class Release" in paragraph 10.1 of the settlement agreement was overbroad, and that the release of the class members' claims must be fairly tailored to the claims that
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		were or reasonably could have been asserted in the lawsuit based on the facts alleged in the operative complaint. The "Class Release" in the amendment remains overbroad and should be revised in accordance with the February 19, 2026 order. 9. The "Released Parties" provision in paragraph 10.1 of the amendment to the settlement agreement appears to be missing a word before "principals," and there is a stray " , " in the same sentence. 10. Paragraph 1.20 of the amendment provides 60 days for "workweek/pay period disputes," but paragraphs 8.7 and 8.8 (and the dispute form) refer only to workweek disputes. This inconsistency should be resolved, and the notice and the workweek/pay period form should also be revised as necessary. 11. In the February 19, 2026 order, the court stated that while the court will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. The court states that plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. Plaintiff's counsel has not identified any unique circumstances in the supplemental filing. The court preliminarily finds attorneys' fees not to exceed 30% of the gross settlement amount (i.e., not to exceed \$232,500) reasonable for this case. 12. Plaintiff's counsel costs include charges for legal research, which are not recoverable and should be removed. In addition, at final approval, plaintiff should submit invoices substantiating the expert and mediation charges. <u>As to the notice:</u> 13. The notice should be revised consistent with the above. 14. The court (i.e., Los Angeles County Superior Court) identified in the second paragraph on page 1 is incorrect. 15. The phrase "not exceed" in section II.B should be replaced with "not to exceed." 16. The settlement administrator states that its charges will not exceed \$9,950. Lawrence Decl. (ROA 105) ¶ 22 & Ex. B. The notice (§ II.F) should be revised accordingly. 17. Sections II.J (last sentence) and III.D have not been revised to incorporate pay periods for calculation of individual PAGA payments. 18. Sections III.B and III.D should state the methods for submitting objections and disputes, respectively.
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		19. The second-to-last sentence of section III.B should be revised to remove the stray " ; " and stray "(c)." 20. The phrase "Central Justice Center" should be removed in section V. 21. Plaintiff did not submit a revised exclusion form formatted to fit on one page. Exhibit 8 to the Supplemental Perlman Declaration is a second copy of the Settlement Allocation Form. 22. The objection form should include the settlement administrator's email address and fax number. <u>As to the proposed order (ROA 94):</u> 23. The proposed order should be revised consistent with the above. 24. The settlement agreement, any amendment(s) thereto, and the notice packet should be attached as exhibits to the proposed order. 25. The proposed order should identify the parties (plaintiff and defendant) by name. 26. The proposed order should identify the PAGA Group Members and the PAGA period. 27. The proposed order should include the following sentence: "The court finds on a preliminary basis that the settlement is fair, adequate, and reasonable, and in the best interests of the class members and the aggrieved employees." 28. The proposed order should state the gross settlement amount, the not-to-exceed amounts of attorneys' fees, litigation costs, plaintiff's enhancement award and settlement administration fees, and the PAGA penalties allocation (including the specific 75% / 25% allocations). 29. The proposed order should include a provision stating: "The court orders the parties and the settlement administrator to carry out their duties and obligations in accordance with terms of the settlement agreement." 30. Paragraph 6 should be removed. 31. In paragraph 8 of the proposed order, the word "preliminarily" should be inserted after "hereby" and before "appointed." 32. The proposed order should include a provision stating that the court retains jurisdiction to enforce the settlement pursuant to Civil Procedure Code section 664.6. 33. In paragraph 11, "plaintiffs" should be singular. 34. The parties should propose a date for the final approval hearing. The court holds final approval hearings on
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		Thursdays at 2:00 p.m. The motion for final approval should be filed and served at least 16 court days before the final approval hearing. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>October 15, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
2	Crawley, et al. v. Rise Energy, LLC, et al. 2023-01336866	<u>Plaintiffs' Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for preliminary approval of an \$875,000 class action and PAGA settlement. The court has the following questions and comments: 1. In the August 21, 2025 order (ROA 111), the court stated: <u>"If required, an amendment to the settlement agreement is directed, rather than 'amended settlement agreement,' to streamline the court's review."</u> 8/21/25 Order (ROA 111) (underlining in original). For unknown reasons, the parties prepared and submitted an amended settlement agreement. 2. Were the supplemental papers served on the LWDA? The proof of service (ROA 123) does not include the LWDA. Plaintiffs must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiffs served the documents, and how service was effected. <u>As to the settlement:</u> 3. In the August 21, 2025 order (ROA 111), the court stated that plaintiffs should provide each named plaintiff's anticipated total amount to be received (including for any individual claims and excluding any enhancement payment). Do any of the named plaintiffs anticipate receiving any compensation for any individual claims? 4. In the August 21, 2025 order, the court stated that the "Released Parties" provision in paragraph 1.41 of the settlement agreement was overbroad, as it included several

		unidentified, ambiguous and/or unrelated third parties. The "Released Parties" provision in the amended settlement agreement remains overbroad. The ambiguous word "affiliates" should be removed. There is also a stray " . " at the end of paragraph 1.41 of the amended settlement agreement. 5. The settlement administrator states that settlement administration fees will not exceed \$16,950. Mullins Decl. (Ex. A to ROA 128) ¶ 22 & Ex. C. Paragraph 3.2.3 of the amended settlement agreement and section 3(2)(C) of the notice should be revised accordingly. If, as plaintiffs' counsel states, the potential exists for the number of class members to be "significantly higher" (Supp. Brief (ROA 125) at 4:8), why aren't those individuals in the class now? 6. In the August 21, 2025 order, the court stated that it is unlikely to approve attorneys' fees in excess of 25% of the gross settlement amount absent unique circumstances, and that plaintiffs' counsel should address in the supplemental filing whether any such unique circumstances exist here. ROA 111. As plaintiffs' counsel "do not allege that their work in this action involved or required 'unique circumstances,'" the court preliminarily finds attorneys' fees not to exceed \$218,750 to be reasonable for this case. 7. In the August 21, 2025 order, the court stated that an enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action and, in some circumstances, to recognize their willingness to act as a private attorney general and the court is unlikely to approve a settlement that provides an enhancement award in exchange for a general release. ROA 111. Plaintiffs state in the supplemental brief that "[t]he reference to the enhancement payment being consideration for the general release has been removed from each declaration of the Plaintiffs." <i>Id.</i> Notwithstanding that this statement is incorrect (see Carraway Decl. (ROA 129) ¶ 10; Crawley Decl. (ROA 130) ¶ 10; Davis Decl. (ROA 131) ¶ 10), the alleged removal of the statement from plaintiff Taylor's declaration does not negate the representation by plaintiffs' counsel that "because [the named plaintiffs] are to receive this enhancement payment, [they] are entering into comprehensive releases of all claims, known and unknown, unlike the rest of the Class Members." Ellison Decl. (ROA 99) ¶ 32. The court will not approve a settlement that provides an enhancement award in exchange for a general release. In addition, as plaintiffs do not contend "there are 'unique circumstances' with respect to the duties" they performed
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		with regard to this action (see 8/21/25 Order, ROA 111), to the extent enhancement awards are appropriate in this case (as discussed above), the court preliminarily approves an enhancement payment of no more than \$2,500 to each of the named plaintiffs, for a total amount of \$10,000. 8. Defendant's counsel states counsel is aware of another case, <i>Reid v. Rise Energy, LLC</i>, San Joaquin County Superior Court Case No. STK-CV-UOE-2025-0019188. Lambert Decl. (ROA 120) ¶¶ 2-3. Defendant's counsel does not state the effect of the settlement in this case on the <i>Reid</i> case. See 8/21/25 Order (ROA 111) No. 23. Plaintiffs' counsel states counsel is aware of two other cases, <i>Adkins v. Rise Energy, LLC</i>, San Joaquin County Superior Court Case No. STK-CV-UOE-2025-0013650, and <i>Kinna v. Rise Energy, LLC</i>, San Joaquin County Superior Court Case No. STK-CV-UOE-2025-0013623. Plaintiffs' counsel states he is unaware of the effect of the settlement in this case on the <i>Adkins</i> and <i>Kinna</i> cases. Both plaintiffs' and defendant's counsel should undertake to determine the impact, if any, of the settlement in this case on the <i>Reid</i>, <i>Adkins</i> and <i>Kinna</i> cases and must file declarations describing any such impact. 9. Is there a release for participating class members who are also aggrieved employees? 10. Paragraph 7.8.4 of the amended settlement agreement should be revised to conform to paragraph 7.6. 11. Pages 15 and 16 of the amended settlement agreement appear to be missing paragraph numbers. <u>As to the notice:</u> 12. The notice should be revised consistent with the above. 13. The word "already" should be removed from the first sentence of the fifth paragraph on page 1 of the notice. 14. The fifth sentence should be removed from the fifth paragraph on page 1 of the notice. 15. The last two sentences of section 4(3) of the notice should be revised to conform to paragraph 7.6 of the settlement agreement. See 8/21/25 Order (ROA 111) No. 37. 16. The methods of submitting exclusions and objections should be stated in sections 6 and 7, respectively, of the notice. See 8/21/25 Order (ROA 111) No. 36. 17. Sections 4(3), 6 and 7 should be revised to address the dispute, exclusion and objection forms, respectively. See 8/21/25 Order (ROA 111) No. 33. 18. The bolded sentence in the second paragraph of section 7 of the notice ("The deadline for sending written objections
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		to the Administrator [date]”) appears to be missing a word(s). See 8/21/25 Order (ROA 111) No. 40. 19. The third sentence of section 8 of the notice should be removed. 20. The objection, exclusion and dispute forms should each be on a separate page. 21. The dispute form should include the dispute of pay periods, i.e., “and/or pay periods” should be inserted after “workweek” in the title and throughout the form. In addition, in the first sentence of the form, the phrase, “faxed or emailed” should be inserted after “postmarked.” 22. The objection form should state the case name and number and the correct court location. In addition, the objection form should state all acceptable methods of transmission as set forth in the settlement agreement. 23. The exclusion form should make clear that class members may exclude themselves from the class settlement, not the PAGA settlement. In addition, the phrase, “faxed or emailed” should be inserted after “postmarked.” <u>As to the proposed order (ROA 121):</u> 24. The proposed order should be revised consistent with the above. 25. A clean (non-redlined) copy of the proposed order should be submitted to the court. 26. The settlement agreement and any amendments thereto, and the notice packet (in all languages), should be attached as exhibits to the proposed order. See 8/21/25 Order (ROA 111) No. 47. 27. The word “preliminarily” should be inserted before “appointed” in paragraph 5. 28. Paragraph 14 should be moved up to the second paragraph on page 2 of the proposed order. 29. The parties should propose a date for the final approval hearing that has not already passed. The hearing on plaintiffs’ motion for preliminary approval of a class action and PAGA settlement is continued to <u>October 22, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than “amended settlement agreement,” to streamline the court’s review.</u> The parties shall also provide redlined copies of any revised documents.
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		Plaintiffs are ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiffs must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
3	Cuico v. Absolute Home Mortgage Corporation 2024-01371269	Off calendar.
4	Oropeza v. Oceanfront Recovery at Laguna Beach, LLC, et al. 2023-01302016	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of an \$80,000 PAGA settlement. This is the third hearing on plaintiff's motion. The court has issued detailed orders (ROA 82, 117) in connection with both of the prior hearings. The court has the following questions and comments: 1. The court's October 16, 2025 order (ROA 117) states: "<u>If required, an amendment to the settlement agreement shall be submitted, rather than an 'amended settlement agreement,' to streamline the court's review of the documents.</u>" 10/16/25 Order (ROA 117) (bold and underlining in original). For unknown reasons, plaintiff submitted an amended settlement agreement. <u>As to the settlement (Supp. Lo Decl. (ROA 138) Ex. B):</u> 2. The court's prior orders address the effective date of the PAGA release for unnamed aggrieved employees and the aggrieved employees' release. ROA 82, 117. In an effort to avoid more than one further hearing on this motion, the court orders the parties to revise the amended settlement agreement as follows: a. The last sentence of paragraph I.7 should be removed. b. The phrase "for civil penalties" should be inserted in paragraph I.14 after "all claims" and before "under PAGA." c. The word "Representative" should be removed from the heading of paragraph III.6, and the following phrase should be removed from the first sentence of paragraph III.6: "In her capacity as a private attorney general or 'aggrieved employee' acting on behalf of herself, the State of California and Aggrieved Employees." Extending this provision to anyone other than plaintiff is unnecessarily duplicative of the PAGA release in paragraph III.8. d. The following phrase should be inserted at the beginning of the first sentence of paragraph III.8: "Effective upon Defendants' full funding of the Maximum Settlement Amount."

		e. The phrase “and the State of California” should be removed from the first sentence of paragraph III.8. f. The following phrase should be removed from the first sentence of paragraph III.8: “PAGA Released Claims means any and all claims under PAGA.” 3. In the April 24, 2025 order (ROA 82) and October 16, 2025 order (ROA 117), the court stated that plaintiff should state her total anticipated consideration (including for any individual claims), and in the October 16, 2025 order (ROA 117) the court stated that plaintiff should file a copy of the individual settlement agreement with the court. Plaintiff has neither stated her total anticipated consideration nor submitted a copy of her individual settlement agreement. Plaintiff’s counsel states that plaintiff’s “confidential settlement agreement can be provided for the Court’s in camera review.” Supp. Lo. Decl. (ROA 138) ¶ 18. As an initial matter, the court has not received a copy of the agreement. In addition, the court declines to review the document in camera, as all materials filed in support of plaintiff’s motion must be part of the court file for this action. If the parties contend the agreement is confidential, the parties should have lodged a copy of the agreement conditionally under seal and filed a noticed motion to seal the documents before the June 18, 2026 hearing on this motion; if that remains the parties’ position, the parties should promptly do so, as the court will not grant plaintiff’s motion until the agreement has been submitted to the court as ordered in the October 16, 2025 order. The motion to seal should explain, <i>inter alia</i>, why plaintiff’s individual settlement agreement should be shielded from, e.g., the aggrieved employees whose interests plaintiff purports to represent. <u>As to the notice letter (Supp. Lo. Decl. Ex. D):</u> 4. The notice letter should be revised consistent with the above. 5. The last sentence of the “What Is This Lawsuit About?” section should be removed, as it does not accurately describe the aggrieved employees’ release which is, in any event, stated later in the document. 6. The word “Oceanfront” in the first paragraph of the “Who Is Included In The Settlement?” section should be replaced with “Defendants.” The word “Oceanfront” in the second (one sentence) paragraph of the “Who Is Included In The Settlement?” section should be replaced with “Defendants.” 7. The word “requested” should be removed from subsection 1 of the “Who Is Included In The Settlement?” section.
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		8. The word "Oceanfront" subsection 2 of the "Who Is Included In The Settlement?" section should be replaced with "Defendants." 9. The following phrase should be inserted at the beginning of subsection 4 of the "Who Is Included In The Settlement?" section: "Effective upon Defendants' full funding of the Maximum Settlement Amount." The phrase "The Settlement approved by the Court includes all claims under PAGA" should be replaced with "The Aggrieved Employees will release, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, Defendants from all claims for civil penalties." 10. In the "Getting More Information" section, the phrase "will be on file with the Clerk of the Court" should be replaced with "you may review on the settlement administrator's website for this case." The last sentence of the same section should end after "this PAGA Settlement"; all text following that phrase in the last sentence should be removed. 11. In the last sentence of the "Privacy" action, the phrase "the State of California and" should be removed and "PAGA Employees" should be replaced with "Aggrieved Employees." 12. Why is defendants' counsel listed as with plaintiffs' counsel in the "Privacy" section as "attorneys prosecuting this case on behalf of the Aggrieved Employees"? <u>As to the proposed order and judgment (ROA 134):</u> 13. The proposed order and judgment should be revised consistent with the above. 14. The settlement agreement, any amendments thereto and the notice letter should be attached as exhibits to the proposed order and judgment. See 4/24/25 Order (ROA 82) No. 19. 15. The parties should propose a date for the final accounting hearing, which should be a Thursday at 9:00 a.m. See 4/24/25 Order (ROA 82) No. 25. The hearing on plaintiff's motion for approval is continued to <u>October 22, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents.</u> The parties shall provide redlined copies of any
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		revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
5	Seaman, et al. v. SAS Retail Services, LLC 2022-01292199	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiffs' motion for approval of a \$1,560,534.58 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Are there 19,000 aggrieved employees? See Hartranft Decl. (ROA 192) Ex. B. If not, how many aggrieved employees are there? 2. The parties should provide the average, high and low individual PAGA payments. 3. Each plaintiff should state his or her total compensation to be received (excluding for any enhancement award and including for any individual claims). Plaintiffs should also submit copies of the individual settlement agreement(s). See Settlement Agreement ¶ A.23. 4. The "Released Claims" provision in paragraph A.23 of the settlement agreement is overbroad. Releases for aggrieved employees other than plaintiffs should not release more than the civil penalties available under PAGA based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. Subsections (B), (C) and (D) should be removed, as should the third-to-last and last sentences of paragraph A.23. The meaning of the third-to-last sentence is unclear and the last sentence appears duplicative of other statements in the paragraph. 5. The "Released Parties" provision in paragraph A.24 is overbroad. It includes unrelated, ambiguous and/or unidentified third parties such as "affiliates," "partners, joint venturers, affiliated organizations," and "insurers,

		reinsurers and assigns, and each of their past, present and future officers, directors, trustees, agents, employees, attorneys, contractors, representatives, benefits plans sponsored or administered by the Released Parties, divisions, units, and branches, and any other persons or entities acting on behalf of or in concert with any of the foregoing or any persons who Defendant has an obligation to indemnify on account of the Released Claims.” 6. The amount of settlement administration fees stated in paragraph B.2.d appears to contain a typographical error. 7. The phrase “the State of California” should be removed in two places in paragraph B.3. 8. Paragraph B.3 states the aggrieved employees’ releases are effective on the “Effective Date” which is “the date this Settlement is approved, and the Court’s order granting Settlement Approval and Final Judgment.” Settlement Agreement ¶ A.9. Defendant need not fund the settlement until 30 calendar days after the Effective Date. Settlement Agreement ¶ A.11. The court will not require the aggrieved employees to release their claims before defendant funds the entire gross settlement amount. 9. The second sentence of paragraph B.3 should be removed, as its meaning is unclear. 10. Plaintiffs have not provided any case-specific valuation analysis. Plaintiffs must state the legal and factual basis for each claim being settled, must identify the specific discovery (formal and informal) conducted to date, must describe in detail counsel’s investigation of the merits of each claim, and must state how plaintiffs valued each claim being settled. Plaintiffs also must provide specific information sufficient for the court to evaluate whether the consideration being received for the release of the aggrieved employees’ claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the litigation. 11. The following phrase should be removed from paragraph E.1, as the court will not approve a settlement that permits defendant to shorten the PAGA Period: “or Defendant will have the option of moving the end date of the PAGA Period back to such date that there are not more than 252,000 PAGA Pay Periods.” 12. The parties (including all of the plaintiffs and defendant) should advise, in declarations filed with the court, whether, after making reasonable inquiry, they are aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action. If any such actions are known to exist, the declarations shall also state the name and case number of any such case and
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		the procedural status of that case, and describe the impact of the settlement on that case. 13. Plaintiffs Gangwer, Steiner, Torres and Negrete must submit copies of their notice letters to the LWDA. 14. Plaintiffs' counsel seeks attorneys' fees totaling one-third of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys' fees award that exceeds 30% of the gross settlement amount. Plaintiffs' counsel should address in the supplemental filings whether any such unique circumstances exist here. 15. Plaintiffs' counsel must provide the position (e.g., partner, associate, etc.), years of practice, and experience in PAGA actions for Yesenia Silva, Brooke Waldrop and Randy Hy, as those individuals are not listed in the firm resume. Wilkinson Decl. (ROA 189) Ex. 3. 16. Plaintiffs' counsel seeks reimbursement for \$42,321.76 in costs. Plaintiffs' counsel must submit invoices for all mediations and expert fees. FedEx charges are not recoverable and should be removed. Counsel from Gibbs Mura LLP should submit invoices for the charges for "Class Action Research & Litigation" and "Advantage Sales & Marketing," and explain why those charges should reasonably be reimbursed from the gross settlement amount. Counsel should also explain why the costs related to the arbitration of plaintiff Gangwer's individual PAGA claim should reasonably be reimbursed from the gross settlement amount (see Tindall Decl. (ROA 191) ¶ 18), and why appellate costs should be reimbursed from the gross settlement amount. 17. Each of the six named plaintiffs seeks a \$10,000 enhancement award, for a total of \$60,000 in enhancement awards to be paid from the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an enhancement award that exceeds \$2,500 for each plaintiff (\$15,000 total for the six named plaintiffs). Plaintiffs should address in the supplemental filings whether any such unique circumstances exist here. <u>As to the notice letter:</u> 18. The notice letter should be revised consistent with the above. 19. The notice letter should (i) provide an explanation of PAGA; (ii) describe the factual allegations of the operative complaint; (iii) describe the scope of released claims; (iv) state the gross settlement amount, net settlement amount, and the portions allocated to the LWDA and the aggrieved employees; (v) explain how the individual payments will be calculated; (vi) describe the recipient's responsibility for any taxes payable on the amount received; and (vii) notify the
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		aggrieved employees that they cannot opt out of the settlement and that, even if they do not cash their checks, they will be bound by the release. 20. The "Released Claims" described in the notice letter are inconsistent with the settlement agreement and must, in any event, be revised as stated above. 21. The last sentence of the third paragraph is inconsistent with paragraph C.12 of the settlement agreement. If the parties intend Legal Aid at Work to be the cy pres recipient, the settlement agreement should be revised and the parties and counsel must submit declarations stating whether they have any interest in the cy pres recipient, including in its governance. In addition, if the parties intend Legal Aid at Work to be the cy pres recipient, the parties should also provide a declaration demonstrating the propriety of the cy pres recipient, and explaining why a cy pres distribution is appropriate here, as opposed to, e.g., distributing any unclaimed funds to the State Controller's Office in the aggrieved employee's name. 22. Will the settlement administrator maintain a website for this case? If so, the notice letter should provide the URL for case website and identify the key case documents (including the order and judgment) that will be posted on the website, and should state that judgment will be posted on the settlement administrator's website for at least 180 days. 23. Should the notice letter be provided in any language other than English? If the notice will be provided in a language(s) other than English, a certified copy of the translated notice (together with an English-language copy) should be attached to the proposed order and judgment as an exhibit. <u>As to the proposed order and judgment (ROA 184):</u> 24. The proposed order and judgment should be revised consistent with the above. 25. Counsel information should be removed from the caption page of the proposed order and judgment. 26. The settlement agreement and any amendments thereto should be attached as exhibits to the proposed order and judgment (along with the notice letter in all languages). Paragraph 2 of the proposed order and judgment should be revised accordingly. 27. The proposed order and judgment should state how notice of entry of the judgment will be given to the aggrieved employees. 28. The proposed order and judgment should state that the court orders the parties, their counsel and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement.
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		29. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 9:00 a.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiffs' motion for approval is continued to <u>October 29, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents.</u> The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiffs must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
6	Segura v. Comprehensive Mobile Care, LLC 2026-01541502	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a \$225,000 class action and PAGA settlement. The court has the following questions and comments: 1. Were the motion papers submitted to the LWDA? The proof of service attached to the notice of motion (ROA 18) does not include the LWDA. Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The class and PAGA periods must have firm end dates to enable the court to evaluate the fairness and reasonableness of the settlement. 3. The parties should provide an estimate of the number of aggrieved employees.

		4. The parties should provide the estimated high and low class payments (exclusive of any PAGA amounts) and the estimated average, high and low PAGA payments. 5. Plaintiff should state her estimated total compensation to be received (excluding for any enhancement payment and including for any individual claims). 6. Paragraph 2.s should include disputes. 7. The court prefers the Notice Deadline be extended for any notices that are remailed. Are there any unique circumstances necessitating the provision that the Notice Deadline not be extended for any remailed notices? 8. The phrase "Released Class Claims" in paragraph 2.t does not appear to be defined in the settlement agreement. 9. The "Released Parties" provision in paragraph 2.x is overbroad as it includes unrelated, unidentified and/or ambiguous third parties such as "affiliated and related companies," and "each of their past and present assigns, insurers, shareholders, partners, agents, advisors, accountants, attorneys, representatives, trustees, heirs, administrators, overseeing officials, owners, officers, directors, managers, employees, and administrators, and any individual or entity that could be liable for any of the Released Claims." The phrase "but not limited to" should also be removed. 10. The settlement agreement uses a variety of capitalized terms (some defined, some not) to apparently refer to the same people or topics. E.g., "Settlement Class Members," "Class Members" and "Participating Individuals"; "Released Class Claims," "Released Claims." The settlement agreement should be revised to (i) define all capitalized terms and (ii) remove different terms that duplicate other terms that refer to the same people or topics. 11. Paragraph 18 should be revised to state that the class members' and aggrieved employees' releases do not become effective until defendant has fully funded the gross settlement amount and any other amounts due under the settlement agreement. 12. The following phrase should be removed from paragraph 18: "and except as to such rights or claims as may be created by this by this [sic] Settlement Agreement." 13. The class members' release in paragraph 18 is overbroad and contains unnecessary duplicative language. The release of the class members' claims must be fairly tailored to the claims that were or reasonably could have been asserted in the lawsuit based on the facts alleged in the operative complaint.
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		14. Is there a release for participating class members who are aggrieved employees? See Settlement Agreement ¶ 19. In addition, "Non-Participating Class Members" does not appear to be defined in the settlement agreement. 15. The aggrieved employees' release in paragraph 19 is overbroad. Releases for aggrieved employees other than plaintiff should not release more than the civil penalties available under PAGA based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. The clause "the Action, and/or ascertained in the course of the Action" should be replaced with "and the operative complaint." 16. The court prefers the notice be accompanied by a separate objection and dispute form for those class members wishing to object or dispute the number of workweeks. The settlement agreement (e.g., ¶¶ 22, 23) and the notice should be revised accordingly to address use of separate objection and dispute forms. 17. Paragraph 22 should be revised to state that (i) the parties shall file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the disputes, and (ii) although the settlement administrator may make the initial decision regarding claim disputes, the court may review any decision made by the settlement administrator regarding a claim dispute. The word "convincing" should be removed from paragraph 22. 18. Objecting class members need not file their objections with the court. The parties will submit copies of any objections to the court with the final approval motion. The first sentence of paragraph 23 should be revised accordingly. The phrase "and whether the objector intends to appear at the Final Approval Hearing" should be removed from the third sentence of paragraph 23. The fifth and eighth sentences of paragraph 23 should be removed. 19. Why should plaintiff and plaintiff's counsel be paid before the class members, the aggrieved employees and the LWDA? See Settlement Agreement ¶¶ 29, 30, 40. 20. Paragraph 30(a) should state when the settlement administrator will be paid. 21. Why are the individual PAGA payments paid equally as opposed to pro rata based on pay periods? See Settlement Agreement ¶ 34(b). In addition, the notice states a different method of calculating the individual PAGA payments. The settlement agreement and the notice should be consistent on this point. 22. Plaintiff's counsel seeks attorneys' fees totaling 35% of the gross settlement amount. While the court will not determine the amount of attorneys' fees to be awarded until the final
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		approval hearing, the court is unlikely to approve attorneys' fees exceeding 30% of the gross settlement amount absent unique circumstances. Plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist in this case. 23. Plaintiff's counsel seeks costs not to exceed \$11,732.99. Plaintiff's counsel should submit an itemized list of costs incurred to date. Nonrecoverable items such as postage, mileage and legal research charges should not be included. 24. Plaintiff Segura seeks an enhancement award of \$10,000 in part because "[t]he service award is intended to serve as consideration in exchange for Plaintiff's general release of claims." Hogg Decl. (ROA 19) ¶ 86. An enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action, and, in some circumstances, to recognize their willingness to act as a private attorney general. The court is unlikely to approve a settlement that provides an enhancement award in exchange for a general release. In addition, while the court will not determine the amount of any enhancement award to be paid to plaintiff until final approval, the court is unlikely to approve an enhancement payment in excess of \$5,000 absent unique circumstances. If unique circumstances warrant the higher amount plaintiff seeks, plaintiff should submit additional information explaining those circumstances. 25. The parties should provide the settlement administrator's qualifications and experience, including evidence that the settlement administrator has procedures in place to protect the security of class data, and sufficient insurance in the event of a data breach or mishandling of the settlement funds. The parties should also submit a copy of the settlement administrator's invoice. 26. Was the settlement submitted to the LWDA in accordance with Labor Code § 2699(s)(2)? 27. Plaintiff must submit a copy of the notice letter to the LWDA. See Settlement Agreement ¶ 9. 28. The parties (plaintiff and defendant) should state in separate declarations filed with the court whether they are aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case. If any such actions are known to exist, the declarations shall state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case.
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As to the notice:

29. The notice should be revised consistent with the above.
30. The title of the notice should be revised to state, "NOTICE OF CLASS AND PAGA ACTION SETTLEMENT."
31. As stated above, the court prefers the notice be accompanied by separate objection and dispute forms for those class members wishing to object or dispute the number of workweeks and/or pay periods. The notice should be revised accordingly to address the use of the separate forms.
32. The notice should advise the aggrieved employees that they are bound by the PAGA release even if they do not cash their checks.
33. The notice should not contain footnotes.
34. In the first paragraph on page 2, all text after the first sentence should be removed.
35. The first sentence of the second paragraph on page 2 should be removed, as should the last sentence of the same paragraph.
36. The following phrase should be removed from the third paragraph on page 2: "(in generic form) can be viewed at the Courthouse, or can be obtained by containing Phoenix Class Action Administration Solutions." The notice should state that the settlement administrator will post all key documents on its website, including the operative complaint, the settlement agreement and any amendments, the class notice and any included forms, the orders granting preliminary and final approval, and the judgment. The judgment should be posted on the settlement administrator's website for at least 180 days. This information can be stated in section 10 or elsewhere in the notice, and need not be stated more than once in the notice.
37. The following phrase should be removed from the first paragraph of section 3: "to the extent not already included into the attorneys' costs."
38. The phrase in the first paragraph of section 3 "in the amount of" after "a service award" and before "\$10,000" should be replaced with "not to exceed."
39. Why is "NET" capitalized in first paragraph of section 3?
40. As stated above, the method of calculating the individual PAGA payments stated in section 4 of the notice is inconsistent with the settlement agreement.
41. If the parties intend the individual PAGA payments to be calculated pro rate based on pay periods (as stated in the notice), the dispute procedure stated in the settlement

		agreement and the notice should include pay period disputes. 42. The effective date of the class members' and aggrieved employees' releases stated in section 5 should be revised as stated above. 43. As stated above, an objecting class member should not mail his or her objection to the court. Section 6 should be revised accordingly. 44. The following phrase should be removed from the first sentence of the first paragraph on page 6: "If you mail a written objection." 45. The second and third sentences of the first paragraph on page 6 should be removed, as should the last sentence in the same paragraph. 46. The second paragraph on page 6 should be removed. 47. The second bolded paragraph in the exclusion form should be removed, as should the third sentence of last paragraph on the first page of the exclusion form. 48. The exclusion form should be formatted to fit on one page. 49. Should the notice be provided in any language other than English? If so, a certified copy of the translated notice should be attached as exhibit to the proposed order. <u>As to the proposed order (ROA 25):</u> 50. The proposed order should be revised consistent with the above. 51. Counsel information should be removed from the caption page of the proposed order. 52. The settlement agreement, any amendment(s) thereto, and the notice packet (in all languages) should be attached to the proposed order as exhibits. 53. The court department (CX105) should be updated throughout the proposed order. 54. Paragraph 3 of the proposed order should also state that the court finds on a preliminary basis the settlement to be fair, adequate, and reasonable, and in the best interests of the class members and aggrieved employees. 55. The proposed order should state the gross settlement amount, the not-to-exceed amounts of attorneys' fees, attorney costs, plaintiff's enhancement award and settlement administration fees, and the total PAGA penalties allocation (including the specific 65% / 35% allocations).
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		56. The proposed order should also address the PAGA settlement, including identifying the aggrieved employees and the PAGA period. 57. The proposed order should include a provision stating that the court retains jurisdiction to enforce the settlement pursuant to Civil Procedure Code section 664.6. 58. The parties should propose a date for the final approval hearing. The court holds final approval hearings on Thursdays at 2:00 p.m. The motion for final approval should be filed and served at least 16 court days before the final approval hearing. The hearing on plaintiff's' motion for preliminary approval is continued to <u>November 5, 2026 at 2:00 p.m.</u> in Department CX105 to enable the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review.</u> The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended documents, and file a proof of service. No earlier hearing date is available for this motion.
7	Steidl v. Z3 Plumbing Corp. 2023-01365173	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$75,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Why is the defendant funding the settlement funds in three installments? Settlement Agreement ¶¶ 1.10, 3.1. If defendant is paying the settlement in installments due to

		defendant's financial condition, admissible evidence of defendant's financial condition must be provided, including appropriate financial documents such as balance sheets, cash flow statements, and profit and loss statements. 2. The parties and counsel must submit declarations stating whether they have any interest in the cy pres recipient (Justice Gap Fund), including in its governance. (This statement should not appear in the proposed order and judgment.) The parties should also explain why a cy pres distribution is appropriate here, as opposed to, e.g., distributing any unclaimed funds to the State Controller's Office in the aggrieved employee's name. 3. Is the estimated average individual PAGA payment \$60.71? In addition, the parties should provide the estimated high and low individual PAGA payments. 4. Plaintiff should provide his anticipated total amount to be received (including for any individual claims and excluding any enhancement payment). 5. The "Released Parties" provision in paragraph 1.26 of the settlement agreement is overbroad. It includes ambiguous, unidentified and/or unrelated third parties such as "attorneys, insurers" and "affiliates." 6. Paragraph 3.2.3 of the settlement agreement is incomplete. In addition, the settlement administrator's invoices states its charges will not exceed \$2,750. Woods Decl. (ROA 31) Ex. 5. The settlement agreement should be revised accordingly. 7. The phrase, "Aggrieved Employees" should be inserted in paragraph 5 between "Plaintiff" and "PAGA Counsel." 8. The phrase "without limitation cause of action against Z3" in paragraph 5.2 does not make sense. 9. The parties (plaintiff and defendant) should advise, in declarations filed with the court, whether, after making reasonable inquiry, they are aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action. If any such actions are known to exist, the declarations shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 10. Plaintiff's counsel seeks attorneys' fees totaling one-third of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys' fees award that exceeds 30% of the gross settlement amount. Plaintiff's counsel should address in the supplemental filings whether any such unique circumstances exist here.
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		In addition, plaintiff's counsel must submit contemporaneous time records reflecting the timekeeper, date of work, task, and time spent on each task. 11. Plaintiff's counsel must submit invoices substantiating the mediation (\$4,500) and expert charges (\$8,385). Plaintiff's counsel should also explain why the expert fees are reasonable for an estimated group of 70 aggrieved employees. "DocuSign envelope" charges are not recoverable and should be removed. Plaintiff's counsel should explain the additional \$263.74 for the "complex fee," as the attached invoice reflects a \$1,000 charge (not \$1,263.74). Supp. Wilcox Decl. (ROA 61) Exs. A, C. 12. Plaintiff seeks a \$5,000 enhancement award. Absent unique circumstances, the court is unlikely to approve an enhancement award that exceeds \$1,000 for this modest settlement. Plaintiff should address in the supplemental filings whether any such unique circumstances exist here. <u>As to the notice:</u> 13. The parties did not submit a notice letter to be sent to the aggrieved employees along with the settlement checks. The notice letter should (i) provide an explanation of PAGA; (ii) describe the factual allegations of the operative complaint; (iii) describe the scope of released claims; (iv) state the gross settlement amount, net settlement amount, and the portions allocated to the LWDA and the aggrieved employees; (v) explain how the individual payments will be calculated; (vi) describe the recipient's responsibility for any taxes payable on the amount received; and (vii) notify the aggrieved employees that they cannot opt out of the settlement and that, even if they do not cash their checks, they will be bound by the release. <u>As to the proposed order and judgment (ROA 57):</u> 14. The proposed order and judgment should be revised consistent with the above. 15. The word "REVISED" before "JUDGMENT" should be deleted in the title and footer. 16. Counsel information should be removed from the caption page of the proposed order and judgment. 17. The settlement agreement and any amendments thereto should be attached as exhibits to the proposed order and judgment (along with the notice letter in all languages). The introductory paragraph of the proposed order and judgment should be revised accordingly. 18. The proposed order and judgment should state how notice of entry of the judgment will be given to the aggrieved employees.
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		19. Paragraph 9 of the proposed order and judgment should be revised to state that the court orders the parties, their counsel and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement. 20. The last sentence of paragraph 10 should be removed. 21. Paragraph 13 of the proposed order and judgment is inconsistent with the settlement agreement and inconsistent with entry of judgment. 22. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 9:00 a.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval of PAGA settlement is continued to <u>November 5, 2026 at 2:00 p.m.</u> in department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review. The parties shall also provide redline copies of the revised notice and proposed order. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
8	People of State of California v. Jivalagian, et al. 2026-01543442	<u>Defendants Caspar S. Jivalagian and Vache A. Thomassian's Motion to Seal</u> Defendants Caspar S. Jivalagian and Vache A. Thomassian move to seal (i) the complaint filed in this case on January 29, 2026, (ii) "all papers and records related to Plaintiff's ex parte Application for an Order Staying the Proceedings," (iii) "all papers and records related to Plaintiff's Motion for an Order Staying the Proceedings," (iv) "all papers and records related to this Motion" and (v) "all papers and records relating to Defendants' ex parte Application to advance the hearing of this motion." Notice of Motion (ROA 49) at 2:4-8. While defendants do not identify these documents by name or ROA number, review of court file reflects that defendants apparently

	seek to seal—in their entirety—at least 15 documents in the court file, including 3 court orders. For the following reasons, defendants’ motion is denied. Unless confidentiality is required by law, court records are presumed to be open. Cal. R. Ct. 2.550(c). A record must not be filed under seal without a court order. Cal. R. Ct. 2.551(a). The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. <i>Id.</i> A party requesting that a court record be filed under seal “must file a motion or an application for an order sealing the record.” Cal. R. Ct. 2.551(b)(1). “The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” <i>Id.</i> A court may order a record be filed under seal only if the court expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. Cal. R. Ct. 2.550(d). An order sealing a record must specifically state the facts that support the findings, and direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. Cal. R. Ct. 2.550(e)(1). All other portions of each document or page must be included in the public file. <i>Id.</i> Defendants’ declarations and that of their counsel do not state facts sufficient to justify sealing these documents. As an initial matter, despite accepting service of the complaint on February 6, 2026 (ROA 10, 14), and filing a brief in the case on February 10, 2026 (ROA 27), defendants waited two months to file the motion to seal. Several of the documents defendants seek to seal were filed in January and February 2026, yet defendants did not move to seal them until April 9, 2026. ROA 49. More fundamentally, defendants have not demonstrated that there exists an overriding interest that overcomes the right of public access to these court records, that the overriding interest supports sealing the records, and that a substantial probability exists that the overriding interest will be prejudiced if the records are not sealed. Defendants identify two purportedly overriding interests: defendants’ Fifth Amendment privilege against self-incrimination and “preserving the integrity of ongoing criminal investigations and prosecutions.” Brief at 5:3-5, 10-11. While under some circumstances an ongoing criminal investigation may warrant sealing a civil complaint (see, e.g., Ins. Code § 1871.7(e)(2); <i>State of Cal. ex rel. Sills v. Ghariv-Danesh</i> (2023) 88 Cal.App.5th 824, 838), defendants—neither of whom is presently a defendant in a pending criminal case—offer no persuasive explanation here how public access to these records infringes their Fifth Amendment
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		privilege against self-incrimination or undermines the integrity of ongoing criminal investigations and prosecutions. Nor have defendants shown that alleged harm to their professional reputations and client relationships warrant sealing these records. "While commercial harm or embarrassment of a party does not alone justify sealing the entire record of a case [citation], it is appropriate to seal certain records when those particular records contain highly sensitive and potentially embarrassing personal information about individuals." <i>People v. Jackson</i> (2005) 128 Cal.App.4th 1009, 1024. <i>Jackson</i> affirmed a trial court's order sealing certain records to protect the privacy of minors regarding alleged sexual misconduct. <i>Id.</i> at 1021-24. Defendants have not demonstrated that the records they seek to seal contain the type of highly sensitive and potentially embarrassing personal information courts have found supports sealing court records. Defendants also have not demonstrated that the proposed sealing is narrowly tailored. Defendants' proposed sealing of at least 15 entire court filings, including 3 court orders, is decidedly not narrowly tailored. Defendants' contention that only wholesale sealing of these records will suffice is not convincing, but defendants also have not in any event, as discussed above, demonstrated that sealing these court records is otherwise appropriate. Clerk to give notice. <u>Status Conference</u> The court has reviewed the parties' joint status conference statement filed June 4, 2026 (ROA 81), and based thereon continues the June 18, 2026 status conference to <u>September 17, 2026 at 2:00 p.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
9	Turner v. Amada America, Inc. 2023-01328405	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$1,300,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$2,500.00 for enhancement award to plaintiff (not to exceed); \$390,000.00 for attorneys' fees (not to exceed); \$26,500.00 for attorneys' costs (not to exceed); \$12,000.00 for settlement administration fees (not to exceed); and \$25,000.00 total PAGA penalties (\$18,750.00 to LWDA).

		Plaintiff is ordered to file and serve <u>by June 25, 2026</u> a revised proposed order (stating the above amounts) with all exhibits attached as follows: <u>Exhibit 1</u>, fully executed copies of the settlement agreement and addendums thereto; and <u>Exhibit 2</u>, the notice packet (in English and Spanish). The citations to the exhibits in the proposed order should be updated accordingly. In addition, the notice should be revised as follows: 1. The PAGA Period start date on page 2 of the notice and page 3 of the proposed order differs from the PAGA Period start date on page 3 of the notice. The parties should determine the correct state date for the PAGA Period and ensure that the correct date is stated in the notice and in the proposed order. 2. In the second sentence of the third paragraph on page 4 of the notice, the phrase "faxed or" should be inserted before "postmarked." 3. In the third sentence of the sixth paragraph on page 4 of the notice, the phrase "faxed or" should be inserted before "postmarked." 4. Next to the second check box on the objection form, the phrase "THE REVERSE SIDE" should be removed. The final approval hearing is scheduled for <u>November 5, 2026 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. No earlier hearing date is available for this motion.
10	Yeganeh v. Amerisave Mortgage Corporation 2022-01274803	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of an \$873,500 class action and PAGA settlement. The court has the following questions and comments: 1. Were the motion papers served on the LWDA? While counsel's declaration states the motion papers were submitted electronically to the LWDA (Payton Decl. (ROA 134) ¶ 68), the proof of service (ROA 142) does not include the LWDA. Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents and how service was effected. 2. Plaintiff filed an overlong brief without obtaining leave of court. Plaintiff should not do so again. Failure to comply

		with applicable court rules may result in sanctions and/or an order striking the overlong brief. <u>As to the settlement:</u> 3. The parties should state the estimated high and low individual class and average, high and low individual PAGA payments. 4. Plaintiff should state plaintiff's total compensation anticipated to be received (including for any individual claims and excluding any enhancement award). 5. The class and PAGA periods need a firm end date to enable the court to evaluate the fairness and reasonableness of the settlement. E.g., Settlement Agreement ¶¶ 1.12, 1.31. 6. Paragraph 1.24 states the individual PAGA payments will be calculated based on workweeks, which is inconsistent with other terms of the settlement agreement. See Settlement Agreement ¶ 3.2.4.1. 7. The "Released Parties" provision in paragraph 1.41 of the settlement agreement is overbroad as it includes unrelated, unidentified and/or ambiguous third parties such as "affiliated entity," and "each of their former and present directors, officers, shareholders, owners, members, attorneys, representatives, insurers, predecessors, successors, and assigns." 8. The "Response Deadline" provision in paragraph 1.43 should include disputes. 9. The parties (plaintiff and defendant) should advise, in declarations filed with the court, whether, after making reasonable inquiry and since the time the settlement agreement was signed, they have become aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action and, if any such actions are known to exist, the declarations shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 10. The phrase "Aggrieved Employees" should be inserted in the first sentence of paragraph 5 after "Class Members" and before "and Class Counsel." 11. The "Release by Participating Class Members Who Are Not Aggrieved Employees" provision in paragraph 5.2 is overbroad. The release of the class members' claims must be fairly tailored to the claims that were or reasonably could have been asserted in the lawsuit based on the facts alleged in the operative complaint. 12. The "Release by Non-Participating Class Members Who Are Aggrieved Employees" provision in paragraph 5.3 is
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		overbroad. The phrase “and ascertained in the course of the Action” should be removed. 13. Is there a release for participating class member who are aggrieved employees? 14. The dispute procedure in paragraph 7.6 should be revised to state: (i) the parties shall file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the disputes, and (ii) although the settlement administrator may make the initial decision regarding claim disputes, the court may review any decision made by the settlement administrator regarding a claim dispute. Paragraph 7.8.4 of the settlement agreement and section 4(3) of the notice should also be revised accordingly. 15. While the court will not determine the amount of attorneys’ fees to be awarded until final approval, the court is unlikely to approve attorneys’ fees in excess of 30% of the gross settlement amount absent unique circumstances. Plaintiff’s counsel should address in the supplemental filing whether any such unique circumstances exist here. 16. Plaintiff’s counsel seeks costs not to exceed \$25,000. Plaintiff’s counsel should provide an itemized list of costs incurred to date. Nonrecoverable items such as postage, mailing and legal research charges should not be included. 17. Plaintiff seeks an enhancement award of \$10,000. While the court will not determine the amount of any enhancement award for plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. Plaintiff should address in the supplemental filing whether any such unique circumstances exist here. 18. Plaintiff’s counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. <u>As to the notice:</u> 19. The notice should be revised consistent with the above. 20. The phrase “and PAGA” should be added after “class action” in the title and throughout the document (e.g., in the first sentence of the first paragraph on page 1). 21. The word “already” should be removed from the first sentence of the fifth paragraph on page 1. 22. The following sentence at the bottom of page 1 should be removed: “You will be deemed to have carefully read and understood it.” 23. The word “strongly” should be removed in the second paragraph of section 1.
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		37. The proposed order should be revised consistent with the above. 38. Counsel information should be removed from the caption page. 39. The settlement agreement and any amendments thereto and the notice packet (including, if applicable, a certified Spanish-language translation) should be attached as exhibits to the proposed order. 40. The proposed order should state the gross settlement amount, the PAGA penalties allocation and the not-to-exceed amounts of attorneys' fees, attorney costs, plaintiff's enhancement award and settlement administration fees. 41. The proposed order should state the Class Period. 42. The proposed order should address the PAGA settlement, including defining the Aggrieved Employees and the PAGA Period. 43. In paragraphs 2 and 3, the word "preliminarily" should be inserted before "appoints." 44. In paragraph 4, "confirms" should be replaced with "preliminarily appoints." 45. The proposed order should state that the court finds on a preliminary basis the settlement to be fair, adequate and reasonable, and in the best interests of the class members and aggrieved employees. 46. The proposed order should include a provision stating: "The court orders the parties and the settlement administrator to carry out their duties and obligations in accordance with terms of the settlement agreement." 47. The proposed order should state that the court retains jurisdiction to enforce the Settlement pursuant to Civil Procedure Code section 664.6. 48. The parties should propose a date for the final approval hearing. The court holds final approval hearings on Thursdays at 2:00 p.m. The motion for final approval should be filed and served at least 16 court days before the final approval hearing. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>November 5, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended</u>
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		<u>settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
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